



Medford City Council
Medford, Massachusetts

MEETING DATE

September 15, 2026

SPONSORED BY

George Scarpelli, City Councilor

AGENDA ITEM

26-159 - Resolution Clarifying the Status and Application of the Proposed "Building Height" Definition Change

FULL TEXT AND DESCRIPTION

WHEREAS, the City Council has learned that a change to the definition of "Building Height" (Section 94-12.0) was discussed as part of the Medford Square rezoning process, and residents scheduled for Zoning Board of Appeals variance hearings were reportedly told that the height definition had already changed.

NOW THEREFORE BE IT RESOLVED, that the Medford City Council requests the Administration, through the Office of Planning, Development & Sustainability, and the Law Department, to answer the following on the record at the next regular meeting: Confirm adoption status. State plainly whether any change to the "Building Height" definition in Section 94-12.0 has been formally adopted by City Council vote under M.G.L. c. 40A §5, or whether it remains a proposed/draft amendment pending the required public hearing and two-thirds vote.

Disclose any pre-adoption application. Identify any instance in which the proposed height definition — or any interpretation, methodology, or guidance different from the current, legally operative definition — was communicated to a resident, applicant, or their representative as a basis affecting a pending or scheduled Zoning Board of Appeals variance hearing, prior to formal Council adoption.

BE IT FURTHER RESOLVED, that the City Council directs the acting City legal representation to review whether any application of an unadopted height definition to a pending permit, variance, or enforcement matter occurred, and to advise the Council in writing as to the legal validity of any such application and any corrective action required; and

BE IT FURTHER RESOLVED, that this matter be placed on the record to make clear that any change to the definition of "Building Height" in the Medford Zoning Ordinance is a legislative act requiring a vote of this City Council, and has not been enacted by administrative action, staff memorandum, or discussion at a joint session absent a completed Council vote.

RECOMMENDATION

FISCAL IMPACT

ATTACHMENTS

None